

Case :- WRIT - C No. - 26590 of 2017

Petitioner :- M/S Nageshwar Papers Limited

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Shailendra Kumar Agrawal,J.

Heard learned counsel for the petitioner and Mohd. Parvez, learned counsel for the respondents.

In view of the peculiar facts and circumstances of the case and with the consent of the learned counsel for the parties, writ petition is disposed of without calling for a counter affidavit.

Sole relief claimed in this petition is a mandamus commanding the respondents not to dismantle, break open or test the meter of the petitioner in their private lab. A further relief has been claimed commanding the respondents to supply the list of approved test lab as provided in Clause 5.4(a) of the Electricity Supply Code, 2005 and thereafter, the meter may be tested after seeking choice from the petitioner out of the approved test lab.

The issue being raised stands settled by a Division Bench judgement of this Court in the case of ***Smt. Amrawati Devi vs. Purvanchal Vidyut Vitran Nigam Limited and another, 2009(2) AWC 1189*** and another Division Bench judgement dated ***30.5.2014 passed on Civil Misc. Writ Petition No. 55384 of 2009 (Mohd. Sagir vs. Dakshinanchal Vidyut Vitran Nigam Limited)***. In the case of ***Smt. Amrawati Devi (Supra)***, it has been observed as under :

"6. From reading of Clause 5.6 (c) (iii) it is clear that this clause in unequivocal terms declares that the defective meter after sealing in presence of consumer, shall be tested, at licensee's lab/independent lab/Electrical Inspector, as agreed by the consumer. Therefore, the agreement by the consumer is essential for testing of the meter either at the laboratory of the Nigam or at the laboratory of some other independent agency. It further provides that option exercised by consumer once cannot be changed. The clause, therefore, empowers the authorities to seal the meter and get it tested with consumer's agreement. Since the clause operates harshly against the consumer it has to be construed strictly. The consumer has a right to get the meter tested with independent agency. The authorities, therefore, have a corresponding duty to apprise the consumer of the right. Failure to discharge this duty, which flows from sub-clause (c) (iii) by the authorities while exercising their right to send the meter for testing, renders the entire proceedings for sealing the meter irregular and illegal. Annexure-3 dated 26.11.2008 does not comply with this requirement. The relevant portion is extracted below:

"1. मीटर ऐक्यू चेक से चेक किया गया मीटर 12.61 धीमा पाया गया। $cwhl=12.61\%$

2. मीटर संख्या यू0पी0आई0 को उतार कर सील किया गया। मीटर का परीक्षण 4.12.2008 को लैब में होगा। उपभोक्ता को सूचित किया जाता है कि दिनांक 4.12.2008 को 12 बजे मीटर के परीक्षण हेतु उपस्थित हो।”

7. It only informs the consumer that the meter shall be tested at licensee's laboratory and she should be present on 4.12.2008. In absence of intimation that she has a right to get it tested at independent laboratory, the notice was contrary to law.

8. It has been argued by the respondents that the Code, 2005 being the law, the petitioner cannot claim that she was not aware of it. On the other hand the counsel for the petitioner argued that 'ignorance of law is no excuse' does not apply universally. We do not consider it necessary to enter into this wider issue as we have found the notice dated 26.11.2008 Annexure-3 to be contrary to Clause 5.6 (c) (ii).

9. For the same reason the argument of the respondents that once the petitioner did not object, she waived her right to get the defective meter tested by independent laboratory cannot be accepted, unless she knew or had knowledge about the provisions of Clause 5.6 (c) (iii) of the Code, 2005. In such situation the doctrine of waiver cannot be pressed into service. The Apex Court in *M/s.Moti Lal Padampat Sugar Mills Ltd. v. State of U. P. and others*, AIR 1979 SC 621, had held in paragraph 6 as below:

"Secondly, it is difficult to see how, on the facts, the plea of waiver could be said to have been made out by the State Government. Waiver means abandonment of a right and it may be either express or implied form of conduct, but its basic requirement is that it must be "an intentional act with knowledge". Per Lord Chelmsford, L.C. in *Earl of Darnley v. London, Chatham and Dover Rly. Co.*, (1867) LR 2 HL 43 at 57. There can be no waiver unless the person who is said to have waived is fully informed as to his right and with full knowledge of such right, he intentionally abandons it. It is pointed out in *Halsbury's Laws of England* (4th Edn.) Volume 16 in paragraph 1472 at page 994 that for a "waiver to be effectual it is essential that the person granting it should be fully informed as to his rights" and Isaacs, J., delivering the judgment of the High Court of Australia in *Craine v. Colonial Mutual Fire Insurance Co. Ltd.*, (1920) 28 CLR 305 (Aus), has also emphasised that waiver "must be with knowledge, an essential supported by many authorities."...Moreover, it must be remembered that there is no presumption that every person knows the law. It is often said that everyone is presumed to know the law, but that is not a correct statement: there is no such maxim known to the law. Over a hundred and thirty years ago, Maule, J., pointed out in *Martindale v. Falkner*, (1846) 2 CB 706, "There is no presumption in this country that every person knows the law: it would be contrary to common sense and reason if it were so." Scrutton, L.J., also once said: "It is impossible to know all the statutory law, and not very possible to know all the common law." But it was Lord Arkin who, as in so many other spheres, put the point in its proper context when he said in *Evans v. Bartlam*, (1937) AC 473"....the fact is that there is not and never has been a presumption that everyone knows the law. There is the rule that ignorance of the law does not excuse, a maxim of very different scope and application. It is, therefore, not possible to

presume, in the absence of any material placed before the Court, that the Appellant had full knowledge of its right to exemption so as to warrant an inference that the appellant waived such right by addressing the letter dated June 25, 1970. We accordingly reject the plea of waiver raised on behalf of the State Government.

10. In our opinion, in absence of intimation of Clause 5.6 (c) (iii) of the Code, 2005, the petitioner could not be deemed to have waived her right to exercise her option to get her meter tested at independent laboratory. To be fair to the Nigam as well as consumer, a notice is required to be given by the Nigam to the consumer as to whether the consumer wants to get the defective meter tested at the laboratory of the Nigam or by Electrical Inspector or by an independent agency. The answer of the notice has to be given by the consumer. After the option is exercised by the consumer and he agrees to get the meter tested at the laboratory of the Nigam or Electrical Inspector, then the Nigam may fix the date for testing the meter. If the consumer exercises his option to get the meter tested from outside agency, the list of the names of the outside agency approved by the Nigam should be intimated to the consumer so that he may choose any one of the outside agency and according to the option of the consumer. The outside agency may test the meter and its finding about testing of meter would be final. It is after following this procedure that the option exercised by consumer cannot be changed. The decision on the basis of option exercised by the consumer, and the report of the test laboratory shall be final and binding on the licensee as well as on the consumer. But the Nigam did not inform the petitioner to exercise her option on 26.11.2008 when the meter of the petitioner was sealed and she was informed to appear on 4.12.2008 for testing of the meter.

11. We are of the considered opinion that after sealing the meter the Nigam must serve a notice, on which it should be printed in bold capital letters, intimating the consumer or his representative to exercise his option either to get the meter tested by the Electrical Inspector or at the laboratory of the Nigam or the consumer may exercise his option to get his meter tested from one of the outside agencies approved by the Nigam mentioned in the notice. Once the consumer exercises his option then immediately a date has to be fixed for testing of the meter in the presence of the consumer."

In view of the law settled on the subject, it is directed that the respondents shall provide a list of test lab approved by National Accreditation Board of Testing and Calibration Laboratory as provided in Clause 5.4(a) of the Electricity Supply Code, 2005 and the meter shall be opened and tested only after the choice is given by the petitioner out of the list supplied to him. It is further directed that the respondent shall not dismantle the meter and test the same in their private lab.

With the aforesaid observations and directions writ petition stands disposed of.

Order Date :- 8.6.2017

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